

STUDENT RECORDS

This Regulation supports Policy [8610](#) and provides specific instructions related to the maintenance and disposition of student records.

A. Contents and Subsets of Records

1. Cumulative Record.

- a. Each student's cumulative record shall include the following records:

- (i) Loudoun County School Registration form
- (ii) Certificate of School Health Examination
- (iii) Cumulative Health-Physical Fitness Record
- (iv) School Entrance Health Information Form
- (v) Scholastic Record (Elementary and/or Secondary, as applicable)
- (vi) Standardized Test Data
- (vii) Results of minimum competency tests provided and prescribed by the State Board of Education
- (viii) Program of Studies plan
- (ix) Grade point average (secondary students only)
- (x) Type of diploma (graduates only)
- (xi) Record of employment counseling and placement (secondary students only)
- (xii) Record of access to Student Scholastic Record (as applicable)
- (xiii) Student Rights and Responsibilities Receipt Acknowledgement

- b. The cumulative record may also include other records concerning the legal status, achievement, routine discipline, attendance, testing, general health, educational plan, interests, work experience, school and community activities, employment evaluations for educational purposes, and awards and honors of the students.

2. Confidential Record.

- a. A confidential record shall be maintained on any student requiring or considered for differentiated programs and/or special services, such as for gifted or disabled students. The following types of information shall be kept in a confidential file:

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- (i) All records relating to the evaluation and/or placement of students for special education programs or services, including:
 - (a) Referrals to school screening committee and recommendations of that committee
 - (b) Educational, psychological, sociological, and other special education assessments
 - (c) Permission for testing, placement, and release of information
 - (d) Eligibility committee recommendations
 - (e) Parent conferences
 - (f) Annual review of placement
 - (g) Appeals
 - (h) Individualized Education Program (IEP)
- (ii) All other confidential records maintained on any student including:
 - (a) Social histories
 - (b) Legal, psychological, and medical reports
 - (c) Records of sensitive physical problems
 - (d) Records of serious or recurrent atypical behavior
 - (e) Reports from other agencies and institutions, such as juvenile court, department of social services, and rehabilitation centers
 - (f) Case studies
 - (g) Confidential interviews and/or recommendations
 - (h) Vocational assessment data
 - (i) Discipline records of students who are involved in long term suspension or expulsion from school

B. Email Expectations Related to Records

1. A record shall not include emails, unless a printed copy of the electronic information is placed in the student's file or the information is stored electronically in a permanent secure storage-system. A printed email maintained as part of educational records must include the following:

- a. Name and email address of recipients
- b. All members of a distribution list

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- c. Name and email address of the sender
- d. Time and date stamp when the email was sent
- e. A subject line, the text of the message, and printed attachments, if any

2. Emails should only be printed and maintained if the information is deemed pertinent by the school officials or if the email demonstrates compliance with federal and state education law.

3. The retention period for emails which have been printed and maintained as part of a student's educational record shall be determined by the applicable period in Schedule No. 21.

C. Destruction

1. The method of destruction shall ensure that personally identifiable information cannot be retrieved from destroyed records.

2. No records may be destroyed if there has been a request by a person authorized to inspect the records and the inspection has not taken place. Destruction of records is not permitted if litigation is pending, a litigation hold has been issued, or if Schedule No. 21 would prevent the destruction.

D. Transfer of Records

1. When an LCPS student transfers to another LCPS school, all records shall be transferred to the new school according to established procedures for such transfers.

2. The original records are not permitted to be sent out of the county, directly given to a parent or student, nor to any private school.

3. For transfer of records outside Loudoun County, review Policy [8640](#).

[Former Regulation 8-72]

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